

Applicable Law Acts

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User Query :

A shop near my home has CCTV footage showing a person stealing my motorcycle. The shopkeeper copied the relevant video from the CCTV system onto a pen drive and gave it to me. The accused now claims that the video could have been edited or modified after it was copied. What legal provisions apply to proving and admitting this footage as electronic evidence?

Job Id. : qwen3-30b/Scenario 8/Combined Act

Prepared by : NyaySahayak

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NyaySahayak

AI-Powered Legal Intelligence Platform

INFORMATION TECHNOLOGY (IT) ACT, 2000

APPLICABLE SECTIONS

Section 79A

— Central Government to notify Examiner of Electronic Evidence

Potentially relevant if expert examination of the CCTV file's authenticity/integrity is needed.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1** **Section 79A** is an expert-evidence support provision; admissibility/proof itself is governed by the BSA.

✓ STRENGTHS & RIGHTS

- 1** The accused specifically alleges editing/modification, which can make forensic examination useful.

✗ RISKS & OBLIGATIONS

- 1** Intermediary safe-harbour rules are not relevant merely because footage is digital; admissibility is governed by the BSA.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

- 1.** Preserve the original CCTV system/source as well as the pen-drive copy.

BHARATIYA NYAYA SANHITA (BNS), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 The question asks how to prove/admit CCTV footage, not which theft offence applies.

✓ STRENGTHS & RIGHTS

1 Keeps the answer scoped to the evidentiary question.

✗ RISKS & OBLIGATIONS

1 A theft provision could be relevant to the underlying prosecution, but the requested issue is proof of footage.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Use BSA and, if needed, electronic-evidence expert provisions.

BHARATIYA SAKSHYA ADHINIYAM (BSA), 2023

APPLICABLE SECTIONS

Section 61 — Electronic or digital record

CCTV footage is an electronic/digital record.

Section 62 — Special provisions as to evidence relating to electronic record

Electronic contents are proved under **section 63**.

Section 63 — Special provisions relating to electronic records

Central to the pen-drive copy/computer output and required certificate/process.

Section 39 (2) — Opinion of Examiner of Electronic Evidence

Relevant where authenticity or modification requires expert opinion.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 Sections 61-63 are the core admissibility/proof framework. Because editing is specifically alleged, **section 39** (2) may also support expert examination.

✓ STRENGTHS & RIGHTS

- 1 The source shopkeeper and original CCTV system can help establish provenance.

✗ RISKS & OBLIGATIONS

- 1 A copied file is not automatically inadmissible, but integrity and **section 63** conditions should be demonstrated.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Record the export process, preserve the original source, hash the copy if possible, and document custody.

DIGITAL PERSONAL DATA PROTECTION ACT (DPDP), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 The question is evidentiary and does not state a relevant Data Fiduciary processing breach.

✓ STRENGTHS & RIGHTS

- 1 Avoids distracting from the evidence issue.

✗ RISKS & OBLIGATIONS

1 Separate CCTV privacy/compliance questions would require different facts.**PROCEDURAL NOTES & COMPLIANCE STEPS***Actionable steps for compliance and grievance redressal***COMPLIANCE STEPS**

1. Current-law caveat (29 Aug 2026): the key substantive private-sector DPDP duties relevant to these scenarios are scheduled to commence on 13 May 2027 under the 13 Nov 2025 commencement notification. Until then, treat these mappings as doctrinal/prospective rather than currently enforceable duties.

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